

Warsaw, December 2, 2022

Decision

DKE.561.27.2022

Pursuant to Article 104 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws of 2022, item 2000, as amended) in connection with Article 7(1) and (2) and Article 60 of the Act of May 10, 2018, on the protection of personal data (Journal of Laws of 2019, item 1781) and based on Article 57(1)(a) and (h), Article 58(2)(b) in connection with Article 31 and Article 58(1)(a) and (e) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of individuals with regard to the processing of personal data and on the free movement of such data and repealing Directive 95/46/EC (General Data Protection Regulation) (OJ EU L 119 of 04.05.2016, p. 1, with amendments published in OJ EU L 127 of 23.05.2018, p. 2, and in OJ EU L 74 of 04.03.2021, p. 35), after conducting administrative proceedings regarding the imposition of an administrative monetary penalty on Ms. E. B., conducting business under the name S. with its registered office in B., the President of the Personal Data Protection Office issues a reprimand to Ms. E. B., conducting business under the name S. with its registered office in B. at ul. (...) for violating the provisions of Article 31 and Article 58(1)(a) and (e) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of individuals with regard to the processing of personal data and on the free movement of such data and repealing Directive 95/46/EC (General Data Protection Regulation) (OJ EU L 119 of 04.05.2016, p. 1, with amendments published in OJ EU L 127 of 23.05.2018, p. 2, and in OJ EU L 74 of 04.03.2021, p. 35), consisting of a lack of cooperation with the President of the Personal Data Protection Office in the performance of his duties and failing to provide the President of the Personal Data Protection Office access to personal data and information necessary for the performance of his tasks.

Justification

Factual Background

A complaint was submitted to the Personal Data Protection Office (hereinafter referred to as "UODO") by Ms. A. C. (hereinafter referred to as "the Complainant"), residing in B. at ul. (...) regarding irregularities in the processing of her personal data by Ms. E. B., conducting business under the name S. with its registered office in B. at ul. (...) (hereinafter referred to as "the Entrepreneur"), consisting of the failure to comply with the Complainant's request based on Article 15 of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of individuals with regard to the processing of personal data and on the free movement of such data and repealing Directive 95/46/EC (General Data Protection Regulation) (OJ EU L 119 of 04.05.2016, p. 1, with amendments published in OJ EU L 127 of 23.05.2018, p. 2, and in OJ EU L 74 of 04.03.2021, p. 35) (hereinafter referred to as "Regulation 2016/679").

In order to consider the complaint, the President of the Personal Data Protection Office (hereinafter referred to as "the President of UODO") initiated administrative proceedings under reference number DS.523.2584.2022, in which, based on Article 58(1)(a) and (e) of Regulation 2016/679 – by letters dated May 20, 2022, and July 29, 2022 – he summoned the Entrepreneur to respond to the content of the complaint and to provide explanations:

- 1) whether, and if so, on what legal basis, for what purpose, and to what extent the Entrepreneur processes the Complainant's personal data;
- 2) whether the Entrepreneur received the Complainant's request for access to her personal data based on Article 15(1) of the GDPR and for a copy of that data based on Article 15(3) of the GDPR, in particular data recorded by means of monitoring and recordings of conversations, and if so, what was the Entrepreneur's position regarding the above (a copy of the response to the Complainant's request should be sent to the Personal Data Protection Office).

Both letters were delivered to the Entrepreneur on May 25, 2022, and August 18, 2022, respectively, and remained unanswered. The letter dated July 29, 2022, contained a notice that the failure to

provide explanations would constitute a violation of the obligation to cooperate with the supervisory authority, which is the Personal Data Protection Office, and consequently, the President of UODO may consider imposing an administrative monetary penalty based on Article 83(5)(e) of Regulation 2016/679.

The above circumstances of the factual state were established by the President of UODO based on the entirety of the official correspondence conducted between the Entrepreneur and the President of UODO, which is included in the files of the proceedings under reference number DS.523.2584.2022. This correspondence reflects the entirety of attempts made by the President of UODO to gain access to the information necessary for the performance of his tasks, that is, in this case – to consider the matter under reference number DS.523.2584.2022, and on the other hand – the reaction of the Entrepreneur to the requests of the President of UODO.

Due to the lack of cooperation with the President of UODO in the performance of his duties and the failure to provide the necessary information to the President of UODO for the execution of these tasks, the President of UODO initiated...

****Administrative Proceedings Against the Entrepreneur****
(Reference No. DKE.561.27.2022)

Regarding the Imposition of an Administrative Financial Penalty, in connection with the violation of Article 31 and Article 58(1)(a) and (e) of Regulation 2016/679. The Entrepreneur was informed about the initiation of the proceedings by a letter dated October 6, 2022, delivered on October 10, 2022. In this letter, the Entrepreneur was summoned – for the purpose of determining the basis for the penalty calculation, based on Article 101a(1) of the Act of May 10, 2018, on the Protection of Personal Data (Journal of Laws of 2019, item 1781) – to present a financial report or another document showing the amount of turnover and financial results achieved by the Entrepreneur in 2021.

In response to the initiation of administrative proceedings with reference number DKE.561.27.2022, the Entrepreneur provided explanations in a letter dated October 24, 2022. He informed that he had never received the letter dated July 29, 2022. The lack of cooperation with the President of the Personal Data Protection Office (UODO) was justified by the Entrepreneur as being due to a series of circumstances beyond his control. He explained that on the day he received the letter dated May 20, 2022, he was on vacation outside the country. The letter was received by an employee who was not authorized to provide explanations on behalf of the Entrepreneur. Upon returning from vacation, a difficult family situation forced the Entrepreneur to dedicate most of his time to caring for his disabled grandmother. This caused a delay in providing the explanations requested by the President of UODO. The Entrepreneur requested a waiver of the imposition of the financial penalty. He also submitted the financial report for the year 2021.

In a letter dated November 8, 2022, the Entrepreneur provided additional explanations to the President of UODO. He informed that he had received a letter from the Complainant regarding access to her personal data and obtaining a copy of that data. However, the Entrepreneur did not respond to the Complainant, as he explained that he had never processed her personal data nor recorded her image. Therefore, he was unable to provide a copy of the Complainant's personal data. The Entrepreneur, in a letter dated November 8, 2022, corrected the information about not receiving the letter dated July 29, 2022.

After reviewing all the evidence collected in the case, the President of the Personal Data Protection Office considered the following.

****Legal Justification****

According to Article 57(1)(a) of Regulation 2016/679, the President of UODO, as a supervisory authority within the meaning of Article 51 of Regulation 2016/679, monitors and enforces the application of this regulation within its territory. As part of its competencies, the President of UODO is authorized, among other things, to conduct proceedings regarding the application of the provisions of this legal act (Article 57(1)(h)) and, in particular, to consider complaints lodged by individuals whose data is concerned and to conduct proceedings regarding those complaints in accordance with the

provisions of Article 57(1)(f) of Regulation 2016/679.

To enable the realization of such defined tasks, the President of UODO has a number of powers specified in Article 58(1) of Regulation 2016/679 concerning the proceedings conducted, including the power to order the data controller and the processor to provide all information necessary for the performance of its tasks (Article 58(1)(a)) and the power to obtain from the controller and the processor access to all personal data and information necessary for the performance of its tasks (Article 58(1)(e)).

Violations of the provisions of Regulation 2016/679 related to the lack of cooperation with the President of UODO in the performance of his tasks, resulting in a violation of Article 31 of Regulation 2016/679, are subject to – in accordance with Article 83(4)(a) in fine of Regulation 2016/679 – an administrative financial penalty of up to EUR 10,000,000, and in the case of an enterprise – up to 2% of its total annual worldwide turnover from the previous financial year, with the higher amount applying. Violations of the provisions of Regulation 2016/679 consisting of the failure of the controller or processor to provide access to all personal data and information, resulting in a violation of the powers of the authority specified in Article 58(1), are subject to – in accordance with Article 83(5)(e) in fine of Regulation 2016/679 – an administrative financial penalty of up to EUR 20,000,000, and in the case of an enterprise – up to 4% of its total annual worldwide turnover from the previous financial year, with the higher amount applying.

The President of UODO also has a number of corrective powers specified in Article 58(2), including issuing warnings to the controller or processor in the event of violations of the provisions of Regulation 2016/679 through processing operations. The President of UODO, acting under Article 58(2)(b) of Regulation 2016/679, may consider it justified to issue a warning to the controller or processor in the event of a violation of the provisions of Regulation 2016/679, including the provisions of Article 31 and Article 58(1)(a) and (e) of this legal act.

According to Recital 148 of Regulation 2016/679, to make the enforcement of the provisions of the regulation more effective, sanctions, including administrative financial penalties, should be imposed for violations, in addition to or instead of appropriate measures imposed under this regulation by the supervisory authority. If the violation is minor, the financial penalty may be replaced by a warning. However, due attention should be paid to the nature, gravity, and...

****Duration of the Violation, Whether the Violation Was Intentional, Actions Taken by the Administrator to Minimize Damage, Degree of Responsibility or Any Relevant Prior Violations, How the Supervisory Authority Became Aware of the Violation, Compliance with Measures Imposed on the Administrator or Processor, Application of Codes of Conduct, and Any Other Aggravating or Mitigating Factors.****

Referring the above provisions of Regulation 2016/679 to the established factual state in this case, it must be stated that the Entrepreneur, as a party to the proceedings with reference number DS.523.2584.2022, by failing to provide explanations for the resolution of the case with reference number DS.523.2584.2022, violated the obligation arising from Article 58(1)(a) and (e) of Regulation 2016/679 - the obligation to ensure that the President of the UODO has access to information necessary for the performance of his tasks. In this case, the information necessary for continuing the proceedings was the Entrepreneur's response to the content of the submitted complaint and the provision of explanations in the form of answers to the questions posed by the President of the UODO in the letter dated May 20, 2022, and reiterated in the letter dated July 29, 2022. Despite the receipt of correspondence by the Entrepreneur, the President of the UODO did not receive any response to any of the letters (dated May 20, 2022, and July 29, 2022). This necessitated the initiation of proceedings regarding the imposition of an administrative monetary penalty. As a result, the Entrepreneur promptly began cooperating with the President of the UODO and, in letters dated October 24, 2022, and November 8, 2022, provided explanations in the proceedings with reference number DS.523.2584.2022. He also informed about the reasons for the previous lack of response to the authority's requests. The explanations submitted allowed for further proceedings in the aforementioned case.

The described conduct of the Entrepreneur, consisting of a lack of response to the requests directed to him by the President of the UODO, also exhausts - apart from the violation of Article 58(1)(a) and (e) of

Regulation 2016/679 - the elements of a violation of Article 31 of that regulation, which imposes an obligation on the administrator and the processor to cooperate with the supervisory authority - at its request - in the performance of its tasks. In the opinion of the President of the UODO, there is no doubt that for a certain period (from the moment of receiving the letter dated May 20, 2022, to the moment of providing a response in the letter dated October 24, 2022) in the proceedings with reference number DS.523.2584.2022, it could not be said that there was cooperation on the part of the Entrepreneur, despite the requests directed to him. These requests indeed formulated a "demand" of the supervisory authority referred to in Article 31 of Regulation 2016/679. The justification presented by the Entrepreneur for the lack of response to the requests of the President of the UODO does not relieve him of responsibility for the established omission. However, the reasons indicated by the Entrepreneur for the lack of cooperation with the supervisory authority should be considered credible and significantly influential on the assessment of the Entrepreneur's behavior, in the context of the choice of sanction applied to him in this proceeding.

In the factual state at hand, as a result of initiating these proceedings, no other circumstances indicating a lack of willingness to cooperate by the Entrepreneur with the President of the UODO were found. The circumstances of the case, particularly the expressed willingness of the Entrepreneur to cooperate with the President of the UODO, allow for the conclusion that his initial inactivity was not intentional. In the opinion of the supervisory authority, the mere initiation of proceedings regarding the imposition of an administrative monetary penalty and the real prospect of its imposition became a clear signal for the Entrepreneur that further evasion of the obligations imposed by the provisions of Regulation 2016/679 would inevitably lead to the application of the most severe sanctions provided for by those provisions.

Having the above in mind, acting on the basis of Article 58(2)(b) of Regulation 2016/679, according to which each supervisory authority has the right, in the context of ongoing proceedings, to issue a reprimand to the administrator or processor in the event of a violation of the provisions of this regulation by processing operations, the President of the UODO deemed it justified to issue a reprimand to the Entrepreneur regarding the established violation of the provisions of Articles 31 and 58(1)(a) and (e) of Regulation 2016/679, assuming that in light of the criteria specified in Article 83(1) and (2) of Regulation 2016/679, it would be effective and sufficient. However, it should be noted that in the event of a similar occurrence in the future, any reprimand issued by the President of the UODO against the Entrepreneur will be taken into account when assessing the grounds for the potential imposition of an administrative penalty, in accordance with the principles specified in Article 83(1) and (2) of Regulation 2016/679.

In this factual and legal state, the President of the UODO resolved as stated in the operative part.

****Instruction****

The decision is final. The party has the right to appeal the decision to the Provincial Administrative Court in Warsaw within 30 days from the date of its delivery, through the President of the UODO (address: ul. Stawki 2, 00 - 193 Warsaw). The fee for the appeal is 200 PLN. In the proceedings before the Provincial Administrative Court, the party has the right to apply for legal aid, which includes exemption from court fees and the appointment of a lawyer, legal advisor, tax advisor, or patent attorney. Legal aid may be granted upon the party's request submitted before the initiation of the proceedings or during the proceedings. The application is free of court fees.

****Print Article****

****Metadata****

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